

16 & 17 GEO. 5.

No. 4.

A MEASURE passed by the National Assembly
of the Church of England .

To amend the Ecclesiastical Commissioners Acts, 1840 and 1841, and the Ecclesiastical Commissioners Act, 1840, Amendment Act, 1885, and to make further provision for the augmentation of archdeaconries, for aiding the endowment funds of new bishoprics, for bishops' costs of legal proceedings, for the maintenance of Lambeth Palace, and the repair of other Episcopal Residences.

[15th July 1926.]

Power to
Commis-
sioners to
grant not
more than
300*l.* per
annum for
arch-
deaconries.

1. The limitation to two hundred pounds per annum, expressed in the thirty-fourth section of the Ecclesiastical Commissioners Act, 1840, and the second section of the Ecclesiastical Commissioners Act, 1840, Amendment Act, 1885, of the amount to which the income of any archdeaconry may be augmented out of the common fund of the Ecclesiastical Commissioners is hereby removed, and the Ecclesiastical Commissioners are hereby authorised to make in accordance with the provisions of those Acts for the augmentation or endowment of any archdeaconry a grant not exceeding, together with any existing grant or grants in augmentation of the income of the same archdeaconry, the sum of three hundred pounds per annum, provided that the whole income of the archdeaconry, including the income derived from any ecclesiastical office or preferment annexed to the same archdeaconry, be not thereby raised beyond the sum of one thousand pounds per annum : and in any case in which the Order of His Majesty in Council ratifying a scheme of the Ecclesiastical Commissioners for the endowment or augmentation of any archdeaconry by a grant out of the common fund of the Commissioners or by the annexation of any ecclesiastical office or preferment thereto or by any other of the means authorised for the endowment or augmentation of an archdeaconry shall declare that procurations,

synodals, visitation fees and induction fees or any of these fees or payments shall not be receivable by the archdeacon, all such fees or payments shall cease to be payable to the archdeacon of that archdeaconry.

2. The disannexation from any archdeaconry of any annexed canonry or portion of the income of a canonry or benefice may be effected by the means prescribed in the eleventh section of the Ecclesiastical Commissioners Act, 1841, notwithstanding anything contained in that section, whether the annexation had been made under the provisions of the Ecclesiastical Commissioners Act, 1840, or the Ecclesiastical Commissioners Act, 1841, or otherwise, and whether or not the canonry or portion of the income of a canonry or benefice so disannexed be, or be intended to be, annexed to any other archdeaconry.

Disannexa-
tion of
canonry or
benefice
from arch-
deaconry.

3. The Ecclesiastical Commissioners may, out of their common fund by resolution, make contributions—

Power to
Commis-
sioners to
contribute
towards
endowment
of certain
bishoprics.

(a) towards the provision of the minimum endowment required to be raised as a condition of the foundation of any new bishopric hereafter to be founded under the provisions of any Measure already passed, or which may hereafter be passed, provided that no such contribution shall be made except upon condition that there shall be first raised from sources other than ecclesiastical endowments, and paid over to the Ecclesiastical Commissioners for the same purpose, a sum of not less than ten times the amount thereof; and

(b) towards raising to three thousand pounds a year the annual value of the endowment fund (exclusive of the annual value of any episcopal residence and of any part of the fund allotted to or required for the provision of the episcopal residence) of any bishopric founded under the provisions of the Bishopric of St. Albans Act, 1875, or of any Act or Measure subsequent thereto, provided that no such contributions shall be made except upon condition that there shall be first given from sources other than ecclesiastical endowments and paid over to or otherwise secured to

the satisfaction of the Ecclesiastical Commissioners as an addition to the endowment fund of the bishopric a contribution for the purposes of that fund of not less capital value than the amount thereof.

Power to
Commis-
sioners to
pay bishop's
costs of
legal pro-
ceedings.

4. The costs and expenses incurred by the bishop of any diocese in relation to legal proceedings in any court, taken or defended by the bishop for the correction of offences against morality or the laws ecclesiastical, not being questions of doctrine or ritual, or for the promotion of the efficient discharge by clergy of their ecclesiastical duties, shall be paid by the Ecclesiastical Commissioners out of their common fund : Provided that, before taking or defending any such legal proceedings, the bishop shall have submitted the matter to an official appointed by the Archbishops of Canterbury and York jointly, and shall have obtained his approval in writing of the course proposed to be taken by the bishop, and provided further that the solicitor appointed by the bishop to act on his behalf in the proceedings shall have been first approved for that purpose by the Ecclesiastical Commissioners.

The Ecclesiastical Commissioners with the concurrence of the Archbishops of Canterbury and York may from time to time make regulations as to the procedure in the submission of matters to the official so appointed, and as to information to be furnished to him for the purpose of his examination of any such matter.

Qualifica-
tion and re-
muneration
of official
appointed
under
preceding
section.

5. The official to be appointed by the two archbishops in accordance with the provisions of the last preceding section of this Measure shall be a barrister-at-law who has been in actual practice for not less than ten years, and he shall hold his office subject to the right of the two archbishops to determine his appointment and his remuneration shall be determined by the Ecclesiastical Commissioners with the concurrence of the two archbishops, and shall be paid by the Ecclesiastical Commissioners out of their common fund.

Commis-
sioners to
maintain
Lambeth
Palace.

6. The Ecclesiastical Commissioners shall bear and pay out of their common fund the whole cost of the maintenance in repair in accordance with the law of ecclesiastical dilapidations of the archiepiscopal residence known as Lambeth Palace, with its outbuildings, walls,

and appurtenances, and the cost of the insurance of the same against damage by fire in an office approved by the Commissioners and for an amount approved by them, and shall out of the same fund pay all rates (including water rate) and taxes (including property tax) assessed upon and payable by the Archbishop of Canterbury as owner or occupier thereof: Provided that no works of repair of which the cost is so to be borne by the Ecclesiastical Commissioners shall be undertaken or put in hand without the approval of the Commissioners being first obtained, and the Commissioners shall, if they so require, have the control of any such works, and all such works shall be carried out to the satisfaction of themselves or of such competent surveyor as they may appoint.

7. The Ecclesiastical Commissioners may, out of their common fund, pay such part as they shall in each case determine, of the cost of the maintenance in repair in accordance with the law of ecclesiastical dilapidations of the episcopal houses of residence named in the schedule to this Measure, the part of the cost so to be borne by the Commissioners in any case (whether a proportionate part of the whole cost of repairs or the whole cost of certain classes of repairs or of repairs to specific portions of the houses respectively) being determined by the Commissioners after survey made on their behalf and due consideration by them of the extent to which the bishops liability for repairs is increased by reason of the antiquity of the house or portions thereof, by the necessity of maintenance of features of historical or architectural interest, or by the character of the structure or any other circumstances rendering the cost of maintenance in repair abnormally high, and in respect of all episcopal residences (whether named in the schedule or not) the Ecclesiastical Commissioners may, out of their common fund, pay or contribute towards the payment of expenditure from time to time required upon repairs of an exceptional character.

Power to
Commis-
sioners to
contribute
to repair of
other
episcopal
houses.

No works of repair, the cost or any part of the cost of which is to be borne by the Ecclesiastical Commissioners shall be undertaken or put in hand without their consent being first obtained; and the Commissioners shall, if they so require, have the control of any such works, and all such works shall be carried out to the satisfaction of the

Commissioners or of such competent surveyor as the Commissioners may appoint.

Operation of
Measure
postponed.

8. The provisions of this Measure, or any one or more of those provisions, shall come into operation upon the publication in the "London Gazette" of an instrument under the seal of the Ecclesiastical Commissioners certifying that they are satisfied that the additional burdens imposed, or likely to be imposed, upon their common fund under the provisions of this Measure or, as the case may be, under such one or more of those provisions, may be undertaken by the Commissioners without any probability of the completion of their scheme for the augmentation of benefices as set out in Part III. of the Commissioners' current regulations relating to certain grants out of their common fund being endangered and without interfering with their ability to provide the full sum (if so much be required) of five hundred thousand pounds, the provision of which is authorised by section forty-four of the Ecclesiastical Dilapidations Measure, 1923, and to provide such capital and annual sums as they may be willing to provide for the purpose of a general pensions scheme for the clergy to be established by Measure of the Church Assembly.*

Powers of
Commis-
sioners until
reconstitu-
tion to be
exercised
only with
consent of
Church
Assembly.

9. In the event of a certificate as mentioned in the last preceding section being given by the Ecclesiastical Commissioners before the reconstruction of the constitution of the Ecclesiastical Commission, which is recommended in the Report of the Commission of Enquiry into the Property and Revenues of the Church, has been effected, the powers given to the Ecclesiastical Commissioners and the obligations imposed upon them by this Measure shall, until such reconstruction has been effected, be exercised and become effectual only with the consent of the Church Assembly declared by resolution of the Assembly.†

Short title.

10. This Measure may be cited as the Ecclesiastical Commissioners Measure, 1926.

* The Commissioners' certificate under section 8 was published in the "London Gazette" of 12th November, 1926, at p. 7334.

† The Church Assembly declared its consent under section 9 by resolution passed on 15th November, 1926.

THE SCHEDULE.

The Palace, Ely	of the Bishopric of Ely.
Hartlebury Castle	„ „ „ „ Worcester.
The Palace, Chichester	„ „ „ „ Chichester.
The Palace, Wells	„ „ „ „ Bath & Wells.
The Palace, Hereford	„ „ „ „ Hereford.
Rose Castle, Carlisle	„ „ „ „ Carlisle.
The Palace, Norwich	„ „ „ „ Norwich.
The Palace, Salisbury	„ „ „ „ Salisbury.
Fulham Palace	„ „ „ „ London.
Auckland Castle	„ „ „ „ Durham.
Bishopthorpe	„ „ Archbishopric of York.
The Old Palace, Lincoln	„ „ Bishopric of Lincoln.
The Palace, Peterborough	„ „ „ „ Peterborough.
Cuddesdon Palace	„ „ „ „ Oxford.
The Palace, Lichfield	„ „ „ „ Lichfield.
Farnham Castle	„ „ „ „ Winchester or Guildford.
The Palace, Exeter	„ „ „ „ Exeter.

No. 5.

A MEASURE passed by the National Assembly
of the Church of England

To provide for the extinguishment or redemption
of first fruits and tenths. [15th July 1926.]

1. This Measure may be cited as the First Fruits and Tenths Measure, 1926. Short title.

2. As from the appointed day, all first fruits and tenths and sums in lieu of first fruits or tenths payable to Queen Anne's Bounty by an archbishop, bishop, dean, or archdeacon, or by the sub-chanter, custos, vicars choral or minor canons of a cathedral church, or by the holder of a prebend in the patronage of a bishop in right Extinguish-
ment of
certain first
fruits and
tenths.